

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MAC INDUSTRIES INC. DBA MAC CONTAINER LINE,
Complainant

v.

COSCO SHIPPING LINES CO., LTD., COSCO SHIPPING LINES
(NORTH AMERICA) INC., AND COSCO SHIPPING LINES
(INDIA) PRIVATE, *Respondents*.

DOCKET NO. 25-29

Served: August 31, 2026

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

SCHEDULING ORDER

On August 26, 2026, a joint status report with proposed schedule (“JSR”) was filed by Complainant MAC Industries Inc. dba MAC Container Line (“MAC”) and Respondents COSCO Shipping Lines Co., Ltd. (“COSCO”) and COSCO Shipping Lines (North America) Inc. (“CSLNA”) (collectively, the “Parties”). COSCO Shipping Lines (India) Pvt. was not a party to the JSR.

The parties state that they have both contacted CADRS to schedule a preliminary conference. The parties jointly propose a schedule for this proceeding. The proposed schedule is reasonable and adopted. Therefore, MAC, COSCO, and CSLNA are hereby **ORDERED** to follow this schedule:

September 2, 2026	Initial disclosures served.
September 11, 2026	Initial discovery requests may be served.
October 16, 2026	Fact depositions completed.
October 30, 2026	MAC expert report, if any.
November 20, 2026	COSCO’s and CSLNA’s expert reports served.
December 4, 2026	Expert depositions completed; Close of discovery.
December 21, 2026	Complainant’s initial brief, proposed findings of fact, and appendix.
January 18, 2027	Respondents’ opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.
February 1, 2027	Complainant’s reply brief and responses to proposed findings of fact.

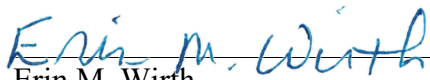
The parties are encouraged to discuss settlement of this proceeding. However, such discussion will not stay other deadlines in the proceeding as engaging in discovery could provide evidence that assists the parties in resolving their differences, while delays hinder the parties' progress. If a settlement is reached, the parties must file a motion requesting approval of it along with a copy of the settlement. 46 C.F.R. § 502.72(a)(3).

Motions and settlement discussions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of the parties to proceed expeditiously.

The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, "[p]arties cannot control an agency's docket or procedures through agreement among themselves." *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

The amended complaint requested an oral hearing. Amended Complaint at ¶ 75. Respondents disagree that a hearing is necessary. Answer to Amended Complaint at ¶ 75. Under Commission rules, "The presiding officer will determine whether an oral hearing is necessary." 46 C.F.R. § 502.62(a)(5). The parties have not included an oral hearing in the schedule and have not explained why it would be necessary. Accordingly, MAC's request for an oral hearing is denied.

The parties are required to submit the legal and factual basis for their arguments and the evidence upon which they rely during briefing. The Initial Order in this proceeding has specific requirements for filings including briefing. Additionally, rules regarding briefs impose page limits, content requirements, and note that the presiding officer will determine the time and manner of filing briefs and any enlargement of time. 46 C.F.R. § 502.214. Any filing submitted without clear indication of whether it is public or confidential or submitted without page numbers, including on exhibits, may be rejected.


Erin M. Wirth
Chief Administrative Law Judge